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Alternatively, the company suggests that, whatever the merits of *National Parks* as an initial matter, Congress effectively ratified its understanding of the term “confidential” by enacting similar phrases in other statutes in the years since that case was decided. To be sure, the ratification canon can sometimes prove a useful interpretive tool. But it derives from the notion that Congress is aware of a definitive judicial interpretation of a statute when it reenacts the *same* statute using the same language. *Helsinn Healthcare S. A. v. Teva Pharmaceuticals USA, Inc.*, 586 U. S. 123, 131 (2019). And Congress has never reenacted Exemption 4. So whether Congress’s use of similar language in other statutes after *National Parks* might (or might not) tell us what later Congresses understood those other statutes to mean, it tells us nothing about Congress’s understanding of the language it enacted in Exemption 4 in 1966.

Finally, Argus urges us to adopt a “substantial competitive harm” requirement as a matter of policy because it believes FOIA exemptions should be narrowly construed. But as we have explained in connection with another federal statute, we normally “have no license to give [statutory] exemption[s] anything but a fair reading.” *Encino Motorcars, LLC v. Navarro*, 584 U. S. 79, 89 (2018). Nor do we discern a reason to depart from that rule here: FOIA expressly recognizes that “important interests [are] served by [its] exemptions,” *FBI v. Abramson*, 456 U. S. 615, 630–631 (1982), and “[t]hose exemptions are as much a part of [FOIA’s] purpose[s] and policies] as the [statute’s disclosure] requirement,” *Encino Motorcars*, 584 U. S., at 89. So, just as we cannot properly *expand* Exemption 4 beyond what its terms permit, see, e. g., *Milner*, 562 U. S., at 570–571, we cannot arbitrarily *constrict* it either by adding limitations found nowhere in its terms.

Our dissenting colleagues appear to endorse something like this final argument. They seem to agree that the law doesn’t demand proof of “substantial” or “competitive” harm,

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but they think it would be a good idea to require a showing of *some* harm. Neither side, however, has advocated for such an understanding of the statute’s terms. And our colleagues’ brief brush with the statutory text doesn’t help; they cite exclusively from specialized dictionary definitions lifted from the national security classification context that have no bearing on Exemption 4. Really, our colleagues’ submission boils down to a policy argument about the benefits of broad disclosure. But as JUSTICE BREYER has noted, when Congress enacted FOIA it sought a “workable balance” between disclosure and other governmental interests—interests that may include providing private parties with sufficient assurances about the treatment of their proprietary information so they will cooperate in federal programs and supply the government with information vital to its work. See *Milner*, 562 U. S., at 589 (dissenting opinion) (arguing for a broad exemption from FOIA disclosure obligations to honor a “workable balance” between disclosure and privacy).

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At least where commercial or financial information is both customarily and actually treated as private by its owner and provided to the government under an assurance of privacy, the information is “confidential” within the meaning of Exemption 4. Because the store-level SNAP data at issue here is confidential under that construction, the judgment of the court of appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE BREYER, with whom JUSTICE GINSBURG and JUSTICE SOTOMAYOR join, concurring in part and dissenting in part.

The Freedom of Information Act (FOIA) requires the government to make information available to the public upon

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request. 5 U.S.C. § 552(a)(3)(A). It also contains a list of exemptions. § 552(b). Exemption 4 says that the Act does “not apply” to “commercial or financial information obtained from a person and . . . confidential.” § 552(b)(4). The Court holds that “commercial or financial information” is “confidential” and consequently falls within the scope of this exemption “[a]t least” where it is “[1] both customarily and actually treated as private by its owner and [2] provided to the government under an assurance of privacy.” *Ante*, at 440. The majority spells out two conditions, but in my view there is a third: Release of such information must also cause genuine harm to the owner’s economic or business interests.

Since 1974, when the District of Columbia Circuit decided *National Parks and Conservation Assn. v. Morton*, 498 F. 2d 765, nearly every lower court has imposed some kind of harm requirement. See *New Hampshire Right to Life v. Department of Health and Human Servs.*, 577 U. S. 994, 996 (2015) (THOMAS, J., dissenting from denial of certiorari) (noting that “every Court of Appeals to consider Exemption 4 has interpreted it [using] *National Park[s]*”); *Critical Mass Energy Project v. NRC*, 975 F. 2d 871, 876 (CA DC 1992) (en banc) (collecting cases). One way to satisfy that requirement is by showing that disclosure is “likely” to “cause substantial harm to the competitive position of the person from whom the information was obtained.” *National Parks*, 498 F. 2d, at 770, and n. 17. The Eighth Circuit, in this case, applied the same standard. *Argus Leader Media v. United States Dept. of Agriculture*, 889 F. 3d 914, 915 (2018). And, like the majority, I believe that *National Parks*’ harm requirement goes too far.

For one thing, *National Parks* held that the only form of private harm that can warrant nondisclosure is “competitive” harm. 498 F. 2d, at 770–771 (emphasis added). Later courts took this to mean that harm from “future or potential competition” does not suffice, *Niagara Mohawk Power Corp. v. Department of Energy*, 169 F. 3d 16, 19 (CA DC 1999), and

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even that harm must “flo[w] from the *affirmative use* of proprietary information *by competitors*,” *Public Citizen Health Research Group v. FDA*, 704 F. 2d 1280, 1291, n. 30 (CA DC 1983) (some emphasis added). But disclosure of confidential information can cause a business serious harm in ways not so directly linked to competition. Disclosure, for example, might discourage customers from using a firm’s products, but without substantial effect on its rivals. It could mean increased potential competition, which may, or may not, materialize. It could, by revealing buying habits, undermine a regulated firm that has no competitors. The list goes on. I can discern no basis in the statute for categorically excluding these other types of harm from the scope of Exemption 4.

Similarly, the need to prove “substantial” competitive harm can sometimes produce complex debates about the nature of competition and the degree of injury. *National Parks*, 498 F. 2d, at 770. And those debates can mean long, onerous court proceedings concerning issues far removed from the genuine fear of harm that leads firms to keep information secret in the first place. The *National Parks* decision itself led to a remand for days of hearings, a second appeal, and yet another remand, so that more evidence about the competitive conditions facing two particular park concessionaires could be heard. *National Parks and Conservation Assn. v. Kleppe*, 547 F. 2d 673, 675 (CA DC 1976). Like the majority, I can find nothing in FOIA’s language, purposes, or history that imposes so stringent a requirement. Accordingly, I would clarify that a private harm need not be “substantial” so long as it is genuine.

On the other hand, I cannot agree with the majority’s decision to jump to the opposite conclusion, namely, that Exemption 4 imposes no “harm” requirement whatsoever. After all, the word “confidential” sometimes refers, at least in the national security context, to information the disclosure of which would cause harm. See, *e.g.*, Webster’s Third New International Dictionary 476 (1966) (defining “confidential” to

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mean “characterized by or relating to information considered prejudicial to a country’s interests”); Webster’s New Collegiate Dictionary 237 (1974) (defining “confidential” to mean “containing information whose unauthorized disclosure could be prejudicial to the national interest”). And a speaker can more sensibly refer to his Social Security number as “confidential” than his favorite color, in part because release of the former is more likely to cause harm. “Confidential,” in this sense, conveys something about the nature of the information itself, not just (as the majority suggests) how it is kept by those who possess it.

Reading “confidential” in this more restrictive sense is more faithful to FOIA’s purpose and how we have interpreted the Act in the past. This Court has made clear that the “mandate of the FOIA” is “broad disclosure of Government records.” *CIA v. Sims*, 471 U. S. 159, 166 (1985). Its purpose is to “permit access to official information long shielded unnecessarily from public view” and “to create a judicially enforceable public right to secure such information from possibly unwilling official hands.” *EPA v. Mink*, 410 U. S. 73, 80 (1973). To that end, we have continuously held that FOIA’s enumerated exemptions “must be narrowly construed.” *Department of Air Force v. Rose*, 425 U. S. 352, 361 (1976); see, e. g., *Milner v. Department of Navy*, 562 U. S. 562, 565 (2011); *FBI v. Abramson*, 456 U. S. 615, 630 (1982) (noting our “oft-repeated caveat that FOIA exemptions are to be narrowly construed”).

The majority’s reading of Exemption 4 is at odds with these principles. The whole point of FOIA is to give the public access to information it cannot otherwise obtain. So the fact that private actors have “customarily and actually treated” commercial information as secret, *ante*, at 440, cannot be enough to justify nondisclosure. After all, where information is already publicly available, people do not submit FOIA requests—they use Google. Nor would a statute designed to take from the government the power to unilater-

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ally decide what information the public can view, see *Mink*, 410 U. S., at 80, put such determinative weight on the government's preference for secrecy (what the majority calls the government's "assurance of privacy"), *ante*, at 440.

For the majority, a business holding information as private and submitting it under an assurance of privacy is enough to deprive the public of access. But a tool used to probe the relationship between government and business should not be unavailable whenever government and business wish it so. And given the temptation, common across the private and public sectors, to regard as secret all information that need not be disclosed, I fear the majority's reading will deprive the public of information for reasons no better than convenience, skittishness, or bureaucratic inertia. The Exemption's focus on "commercial" or "financial" information, for instance, implies that the harm caused by disclosure must do more than, say, simply embarrass the information's owner. It must cause some genuine harm to an owner's economic or business interests.

In sum, the language permits, and the purpose, precedent, and context all suggest, an interpretation that insists upon some showing of harm. And I believe we should say just that. Exemption 4 can be satisfied where, in addition to the conditions set out by the majority, release of commercial or financial information will cause genuine harm to an owner's economic or business interests. (Because it is not at issue, I express no opinion whether genuine harm to a *government* interest would suffice.) I would remand the case for a determination whether, in this instance, release of the information at issue will cause that genuine harm. To that extent, I dissent from the majority's decision.

Syllabus

UNITED STATES *v.* DAVIS ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT

No. 18–431. Argued April 17, 2019—Decided June 24, 2019

Respondents Maurice Davis and Andre Glover were charged with multiple counts of Hobbs Act robbery and one count of conspiracy to commit Hobbs Act robbery. They were also charged under 18 U. S. C. § 924(c), which authorizes heightened criminal penalties for using, carrying, or possessing a firearm in connection with any federal “crime of violence or drug trafficking crime.” § 924(c)(1)(A). “Crime of violence” is defined in two subparts: the elements clause, § 924(c)(3)(A), and the residual clause, § 924(c)(3)(B). The residual clause in turn defines a “crime of violence” as a felony “that by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense.” *Ibid.* A jury convicted the men on most of the underlying charges and on two separate § 924(c) charges for brandishing a firearm in connection with their crimes. The Fifth Circuit initially rejected their argument that § 924(c)’s residual clause is unconstitutionally vague, but on remand in light of *Sessions v. Dimaya*, 584 U. S. 148, the court reversed course and held § 924(c)(3)(B) unconstitutional. It then held that Mr. Davis’s and Mr. Glover’s convictions on the § 924(c) count charging robbery as the predicate crime of violence could be sustained under the elements clause, but that the other count—which charged conspiracy as a predicate crime of violence—could not be upheld because it depended on the residual clause.

Held: Section 924(c)(3)(B) is unconstitutionally vague. Pp. 451–470.

(a) In our constitutional order, a vague law is no law at all. The vagueness doctrine rests on the twin constitutional pillars of due process and separation of powers. This Court has recently applied the doctrine in two cases involving statutes that bear more than a passing resemblance to § 924(c)(3)(B)’s residual clause—*Johnson v. United States*, 576 U. S. 591, which addressed the residual clause of the Armed Career Criminal Act (ACCA), and *Sessions v. Dimaya*, which addressed the residual clause of 18 U. S. C. § 16. The residual clause in each case required judges to use a “categorical approach” to determine whether an offense qualified as a violent felony or crime of violence. Judges had to disregard how the defendant actually committed the offense and instead imagine the degree of risk that would attend the idealized “‘ordinary case’” of the offense. *Johnson*, 576 U. S., at 596. The Court held in each case that the imposition of criminal punishments cannot be made

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to depend on a judge's estimation of the degree of risk posed by a crime's imagined "ordinary case." The government and lower courts have long understood § 924(c)(3)(B) to require the same categorical approach. Now, the government asks this Court to abandon the traditional categorical approach and hold that the statute commands a case-specific approach that would look at the defendant's actual conduct in the predicate crime. The government's case-specific approach would avoid the vagueness problems that doomed the statutes in *Johnson* and *Dimaya* and would not yield to the same practical and Sixth Amendment complications that a case-specific approach under the ACCA and § 16 would, but this approach finds no support in § 924(c)'s text, context, and history. Pp. 451–455.

(b) This Court has already read the nearly identical language of § 16(b) to mandate a categorical approach. See *Leocal v. Ashcroft*, 543 U. S. 1, 7. And what is true of § 16(b) seems at least as true of § 924(c)(3)(B). The government claims that the singular term "offense" carries the "generic" meaning in connection with the elements clause but a "specific act" meaning in connection with the residual clause, but nothing in § 924(c)(3)(B) rebuts the presumption that the single term "offense" bears a consistent meaning. This reading is reinforced by the language of the residual clause itself, which speaks of an offense that, "by its nature," involves a certain type of risk. Pp. 455–458.

(c) The categorical reading is also reinforced by § 924(c)(3)(B)'s role in the broader context of the federal criminal code. Dozens of federal statutes use the phrase "crime of violence" to refer to presently charged conduct. Some cross-reference § 924(c)(3)'s definition, while others are governed by the virtually identical definition in § 16. The choice appears completely random. To hold that § 16(b) requires the categorical approach while § 924(c)(3)(B) requires the case-specific approach would make a hash of the federal criminal code. Pp. 458–459.

(d) Section 924(c)(3)(B)'s history provides still further evidence that it carries the same categorical-approach command as § 16(b). When Congress enacted the definition of "crime of violence" in § 16 in 1984, it also employed the term in numerous places in the Act, including § 924(c). The two statutes, thus, were originally designed to be read together. And when Congress added a definition of "crime of violence" to § 924(c) in 1986, it copied the definition from § 16 without making any material changes to the language of the residual clause, which would have been a bizarre way of suggesting that the two clauses should bear drastically different meanings. Moreover, § 924(c) originally prohibited the use of a firearm in connection with *any* federal felony, before Congress narrowed § 924(c) in 1984 by limiting its predicate offenses to "crimes of violence." The case-specific reading would go a long way toward nullifying that limitation and restoring the statute's original breadth. Pp. 459–462.

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(e) Relying on the canon of constitutional avoidance, the government insists that if the case-specific approach does not represent the best reading of the statute, it is nevertheless the Court's duty to adopt any "fairly possible" reading to save the statute from being unconstitutional. But it is doubtful the canon could play a proper role in this case even if the government's reading were "possible." This Court has sometimes adopted the *narrower* construction of a criminal statute to avoid having to hold it unconstitutional if it were construed more broadly, but it has not invoked the canon to *expand* the reach of a criminal statute in order to save it. To do so would risk offending the very same due process and separation of powers principles on which the vagueness doctrine itself rests and would sit uneasily with the rule of lenity's teaching that ambiguities about a criminal statute's breadth should be resolved in the defendant's favor. Pp. 462–465.

903 F. 3d 483, affirmed in part, vacated in part, and remanded.

GORSUCH, J., delivered the opinion of the Court, in which GINSBURG, BREYER, SOTOMAYOR, and KAGAN, JJ., joined. KAVANAUGH, J., filed a dissenting opinion, in which THOMAS and ALITO, JJ., joined, and in which ROBERTS, C. J., joined as to all but Part II–C, *post*, p. 470.

Eric J. Feigin argued the cause for the United States. With him on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Erica L. Ross*, *Robert A. Parker*, and *John P. Taddei*.

Brandon E. Beck argued the cause for respondents. With him on the brief were *J. Matthew Wright*, *K. Joel Page*, *Jason Hawkins*, *J. Joseph Mongaras*, *Tiffany Talamantez*, *Jeffrey T. Green*, *Tobias S. Loss-Eaton*, and *Sarah O'Rourke Schrup*.*

JUSTICE GORSUCH delivered the opinion of the Court.

In our constitutional order, a vague law is no law at all. Only the people's elected representatives in Congress have

*Briefs of *amici curiae* urging affirmance were filed for FAMM by *David Debold*, *Kellam M. Conover*, *Mary Price*, and *Peter Goldberger*; for the National Association of Criminal Defense Lawyers by *Jonathan L. Marcus* and *Barbara E. Bergman*; and for the National Association of Federal Defenders by *Amy Baron-Evans*, *Daniel T. Hansmeier*, *Donna F. Coltharp*, and *Daniel L. Kaplan*.

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the power to write new federal criminal laws. And when Congress exercises that power, it has to write statutes that give ordinary people fair warning about what the law demands of them. Vague laws transgress both of those constitutional requirements. They hand off the legislature's responsibility for defining criminal behavior to unelected prosecutors and judges, and they leave people with no sure way to know what consequences will attach to their conduct. When Congress passes a vague law, the role of courts under our Constitution is not to fashion a new, clearer law to take its place, but to treat the law as a nullity and invite Congress to try again.

Today we apply these principles to 18 U.S.C. § 924(c). That statute threatens long prison sentences for anyone who uses a firearm in connection with certain other federal crimes. But *which* other federal crimes? The statute's residual clause points to those felonies "that by [their] nature, involv[e] a substantial risk that physical force against the person or property of another may be used in the course of committing the offense." § 924(c)(3)(B). Even the government admits that this language, read in the way nearly everyone (including the government) has long understood it, provides no reliable way to determine which offenses qualify as crimes of violence and thus is unconstitutionally vague. So today the government attempts a new and alternative reading designed to save the residual clause. But this reading, it turns out, cannot be squared with the statute's text, context, and history. Were we to adopt it, we would be effectively stepping outside our role as judges and writing a new law rather than applying the one Congress adopted.

I

After Maurice Davis and Andre Glover committed a string of gas station robberies in Texas, a federal prosecutor charged both men with multiple counts of robbery affecting

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interstate commerce in violation of the Hobbs Act, 18 U. S. C. § 1951(a), and one count of conspiracy to commit Hobbs Act robbery. The prosecutor also charged Mr. Davis with being a felon in possession of a firearm. In the end, a jury acquitted Mr. Davis of one robbery charge and otherwise found the men guilty on all counts. And these convictions, none of which are challenged here, authorized the court to impose prison sentences of up to 70 years for Mr. Davis and up to 100 years for Mr. Glover.

But that was not all. This appeal concerns *additional* charges the government pursued against the men under § 924(c). That statute authorizes heightened criminal penalties for using or carrying a firearm “during and in relation to,” or possessing a firearm “in furtherance of,” any federal “crime of violence or drug trafficking crime.” § 924(c)(1)(A). The statute proceeds to define the term “crime of violence” in two subparts—the first known as the elements clause, and the second the residual clause. According to § 924(c)(3), a crime of violence is “an offense that is a felony” and

“(A) has as an element the use, attempted use, or threatened use of physical force against the person or property of another, or

“(B) that by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense.”

Violators of § 924(c) face a mandatory minimum sentence of five years in prison, over and above any sentence they receive for the underlying crime of violence or drug trafficking crime. The minimum sentence rises to 7 years if the defendant brandishes the firearm and 10 years if he discharges it. Certain types of weapons also trigger enhanced penalties—for example, a defendant who uses a short-barreled shotgun

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faces a minimum sentence of 10 years. And repeat violations of § 924(c) carry a minimum sentence of 25 years.¹

At trial, the government argued that Mr. Davis and Mr. Glover had each committed two separate § 924(c) violations by brandishing a short-barreled shotgun in connection with their crimes. Here, too, the jury agreed. These convictions yielded a mandatory minimum sentence for each man of 35 years, which had to run consecutively to their other sentences. Adding the § 924(c) mandatory minimums to its discretionary sentences for their other crimes, the district court ultimately sentenced Mr. Glover to more than 41 years in prison and Mr. Davis to more than 50 years.

On appeal, both defendants argued that § 924(c)'s residual clause is unconstitutionally vague. At first, the Fifth Circuit rejected the argument. *United States v. Davis*, 677 Fed. Appx. 933, 936 (2017) (*per curiam*). But after we vacated its judgment and remanded for further consideration in light of our decision in *Sessions v. Dimaya*, 584 U. S. 148 (2018), striking down a different, almost identically worded statute, the court reversed course and held § 924(c)(3)(B) unconstitutional. 903 F. 3d 483, 486 (2018) (*per curiam*). It then held that Mr. Davis's and Mr. Glover's convictions on one of the two § 924(c) counts, the one that charged *robbery* as a predicate crime of violence, could be sustained under the elements clause. But it held that the other count, which charged *conspiracy* as a predicate crime of violence, depended on the residual clause; and so it vacated the men's convictions and sentences on that count.

Because the Fifth Circuit's ruling deepened a dispute among the lower courts about the constitutionality of

¹When this case was tried, a defendant convicted of two § 924(c) violations in a single prosecution faced a 25-year minimum for the second violation. See *Deal v. United States*, 508 U. S. 129, 132 (1993); § 1(a)(1), 112 Stat. 3469. In 2018, Congress changed the law so that, going forward, only a second § 924(c) violation committed "after a prior [§ 924(c)] conviction . . . has become final" will trigger the 25-year minimum. Pub. L. 115–391, § 403(a), 132 Stat. 5221–5222.

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§ 924(c)'s residual clause, we granted certiorari to resolve the question. 586 U. S. 1063 (2018).²

II

Our doctrine prohibiting the enforcement of vague laws rests on the twin constitutional pillars of due process and separation of powers. See *Dimaya*, 584 U. S., at 155–156 (plurality opinion); *id.*, at 175–183 (GORSUCH, J., concurring in part and concurring in judgment). Vague laws contravene the “first essential of due process of law” that statutes must give people “of common intelligence” fair notice of what the law demands of them. *Connally v. General Constr. Co.*, 269 U. S. 385, 391 (1926); see *Collins v. Kentucky*, 234 U. S. 634, 638 (1914). Vague laws also undermine the Constitution’s separation of powers and the democratic self-governance it aims to protect. Only the people’s elected representatives in the legislature are authorized to “make an act a crime.” *United States v. Hudson*, 7 Cranch 32, 34 (1812). Vague statutes threaten to hand responsibility for defining crimes to relatively unaccountable police, prosecutors, and judges, eroding the people’s ability to oversee the creation of the laws they are expected to abide. See *Kolender v. Lawson*, 461 U. S. 352, 357–358, and n. 7 (1983); *United States v. L. Cohen Grocery Co.*, 255 U. S. 81, 89–91 (1921); *United States v. Reese*, 92 U. S. 214, 221 (1876).

In recent years, this Court has applied these principles to two statutes that bear more than a passing resemblance to § 924(c)(3)(B)’s residual clause. In *Johnson v. United States*, 576 U. S. 591 (2015), the Court addressed the residual clause of the Armed Career Criminal Act (ACCA), which defined

² Compare *United States v. Simms*, 914 F. 3d 229, 236–246 (CA4 2019) (en banc), *United States v. Salas*, 889 F. 3d 681, 685–686 (CA10 2018), and *United States v. Eshetu*, 898 F. 3d 36, 37–38 (CA10 2018) (*per curiam*) (holding that § 924(c)(3)(B) is vague), with *United States v. Douglas*, 907 F. 3d 1, 11–16 (CA1 2018), *Ovalles v. United States*, 905 F. 3d 1231, 1240–1252 (CA11 2018) (en banc), and *United States v. Barrett*, 903 F. 3d 166, 178–184 (CA2 2018) (taking the opposite view).

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a “violent felony” to include offenses that presented a “serious potential risk of physical injury to another.” § 924(e)(2)(B)(ii). The ACCA’s residual clause required judges to use a form of what we’ve called the “categorical approach” to determine whether an offense qualified as a violent felony. Following the categorical approach, judges had to disregard how the defendant actually committed his crime. Instead, they were required to imagine the idealized “‘ordinary case’” of the defendant’s crime and then guess whether a “‘serious potential risk of physical injury to another’” would attend its commission. *Id.*, at 596. *Johnson* held this judicial inquiry produced “more unpredictability and arbitrariness” when it comes to specifying unlawful conduct than the Constitution allows. *Id.*, at 598.

Next, in *Sessions v. Dimaya*, we considered the residual clause of 18 U. S. C. § 16, which defines a “crime of violence” for purposes of many federal statutes. Like § 924(c)(3), § 16 contains an elements clause and a residual clause. The only difference is that § 16’s elements clause, unlike § 924(c)(3)’s elements clause, isn’t limited to felonies; but there’s no material difference in the language or scope of the statutes’ residual clauses.³ As with the ACCA, our precedent under § 16’s residual clause required courts to use the categorical approach to determine whether an offense qualified as a crime of violence. *Dimaya*, 584 U. S., at 153–154; see *Leocal v. Ashcroft*, 543 U. S. 1, 7, 10 (2004). And, again as with the ACCA, we held that § 16’s residual clause was unconstitutionally vague because it required courts “to picture the kind of conduct that the crime involves in the ordinary case, and to judge whether that abstraction presents some not-well-specified-yet-sufficiently-large degree of

³Section 16 provides that the term “crime of violence” means “(a) an offense that has as an element the use, attempted use, or threatened use of physical force against the person or property of another, or (b) any other offense that is a felony and that, by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense.”

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risk.” *Dimaya*, 584 U. S., at 162 (internal quotation marks omitted).

What do *Johnson* and *Dimaya* have to say about the statute before us? Those decisions teach that the imposition of criminal punishment can’t be made to depend on a judge’s estimation of the degree of risk posed by a crime’s imagined “ordinary case.” But does § 924(c)(3)(B) require that sort of inquiry? The government and lower courts have long thought so. For years, almost everyone understood § 924(c)(3)(B) to require exactly the same categorical approach that this Court found problematic in the residual clauses of the ACCA and § 16.⁴ Today, the government acknowledges that, if this understanding is correct, then § 924(c)(3)(B) must be held unconstitutional too.

But the government thinks it has now found a way around the problem. In the aftermath of our decisions holding the residual clauses of the ACCA and § 16(b) unconstitutionally vague, the government “abandon[ed] its longstanding position” that § 924(c)(3)(B) requires a categorical analysis and began urging lower courts to “adopt a new ‘case specific’ method” that would look to “the ‘defendant’s actual conduct’ in the predicate offense.” 903 F. 3d, at 485. Now, the government tries the same strategy in this Court, asking us to abandon the traditional categorical approach and hold that the statute actually commands the government’s new case-

⁴See, e. g., *United States v. Acosta*, 470 F. 3d 132, 134–135 (CA2 2006); *United States v. Butler*, 496 Fed. Appx. 158, 161 (CA3 2012); *United States v. Fuertes*, 805 F. 3d 485, 498 (CA4 2015); *United States v. Williams*, 343 F. 3d 423, 431 (CA5 2003); *Evans v. Zych*, 644 F. 3d 447, 453 (CA6 2011); *United States v. Jackson*, 865 F. 3d 946, 952 (CA7 2017), vacated and remanded, 584 U. S. 973 (2018); *United States v. Moore*, 38 F. 3d 977, 979–980 (CA8 1994); *United States v. Amparo*, 68 F. 3d 1222, 1225–1226 (CA9 1995); *United States v. Munro*, 394 F. 3d 865, 870 (CA10 2005); *United States v. McGuire*, 706 F. 3d 1333, 1336–1337 (CA11 2013); *United States v. Kennedy*, 133 F. 3d 53, 56 (CA12 1998); see also *Ovalles*, 905 F. 3d, at 1295 (J. Pryor, J., dissenting) (“For years, and even after *Johnson*, the government consistently has urged that we apply a categorical approach to § 924(c)”).

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specific approach. So, while the consequences in this case may be of constitutional dimension, the real question before us turns out to be one of pure statutory interpretation.

In approaching the parties' dispute over the statute's meaning, we begin by acknowledging that the government is right about at least two things. First, a case-specific approach would avoid the vagueness problems that doomed the statutes in *Johnson* and *Dimaya*. In those cases, we recognized that there would be no vagueness problem with asking a jury to decide whether a defendant's "'real-world conduct'" created a substantial risk of physical violence. *Dimaya*, 584 U. S., at 161; see *Johnson*, 576 U. S., at 598, 603–604. Second, a case-specific approach wouldn't yield the same practical and Sixth Amendment complications under § 924(c) that it would have under the ACCA or § 16. Those other statutes, in at least some of their applications, required a *judge* to determine whether a defendant's *prior conviction* was for a "crime of violence" or "violent felony." In that context, a case-specific approach would have entailed "reconstruct[ing], long after the original conviction, the conduct underlying that conviction." *Id.*, at 605. And having a judge, not a jury, make findings about that underlying conduct would have "raise[d] serious Sixth Amendment concerns." *Descamps v. United States*, 570 U. S. 254, 269–270 (2013). By contrast, a § 924(c) prosecution focuses on the conduct with which the defendant is *currently charged*. The government already has to prove to a jury that the defendant committed all the acts necessary to punish him for the underlying crime of violence or drug trafficking crime. So it wouldn't be that difficult to ask the jury to make an additional finding about whether the defendant's conduct also created a substantial risk that force would be used.

But all this just tells us that it might have been a good idea for Congress to have written a residual clause for § 924(c) using a case-specific approach. It doesn't tell us whether Congress actually wrote such a clause. To answer

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that question, we need to examine the statute’s text, context, and history. And when we do that, it becomes clear that the statute simply cannot support the government’s newly minted case-specific theory.

III

A

Right out of the gate, the government faces a challenge. This Court, in a unanimous opinion, has already read the nearly identical language of 18 U. S. C. § 16(b) to mandate a categorical approach. And, importantly, the Court did so without so much as mentioning the practical and constitutional concerns described above. Instead, the Court got there based entirely on the text. In *Leocal*, the Court wrote:

“In determining whether petitioner’s conviction falls within the ambit of § 16, the statute directs our focus to the ‘offense’ of conviction. See § 16(a) (defining a crime of violence as ‘*an offense that has as an element the use . . . of physical force against the person or property of another*’ (emphasis added)); § 16(b) (defining the term as ‘*any other offense that is a felony and that, by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense*’ (emphasis added)). This language requires us to look to the elements and the nature of the offense of conviction, rather than to the particular facts relating to petitioner’s crime.” 543 U. S., at 7.

Leocal went on to suggest that burglary would always be a crime of violence under § 16(b) “because burglary, *by its nature*, involves a substantial risk that the burglar will use force against a victim in completing the crime,” regardless of how any *particular* burglar might act on a specific occasion. *Id.*, at 10 (emphasis added); see also *Dimaya*, 584

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U. S., at 164 (plurality opinion) (reaffirming that “§ 16(b)’s text . . . demands a categorical approach”). And what was true of § 16(b) seems to us at least as true of § 924(c)(3)(B): It’s not even close; the statutory text commands the categorical approach.

Consider the word “offense.” It’s true that, “in ordinary speech,” this word can carry at least two possible meanings. It can refer to “a generic crime, say, the crime of fraud or theft in general,” or it can refer to “the specific acts in which an offender engaged on a specific occasion.” *Nijhawan v. Holder*, 557 U. S. 29, 33–34 (2009). But the word “offense” appears just once in § 924(c)(3), in the statute’s prefatory language. And everyone agrees that, in connection with the elements clause, the term “offense” carries the first, “generic” meaning. Cf. *id.*, at 36 (similar language of the ACCA’s elements clause “refers directly to generic crimes”). So reading this statute most naturally, we would expect “offense” to retain that same meaning in connection with the residual clause. After all, “[i]n all but the most unusual situations, a single use of a statutory phrase must have a fixed meaning.” *Cochise Consultancy, Inc. v. United States ex rel. Hunt*, 587 U. S. 262, 268 (2019).

To prevail, the government admits it must persuade us that the singular term “offense” bears a split personality in § 924(c), carrying the “generic” meaning in connection with the elements clause but then taking on the “specific act” meaning in connection with the residual clause. And, the government suggests, this isn’t quite as implausible as it may sound; sometimes the term “offense” *can* carry both meanings simultaneously. To illustrate its point, the government posits a statute defining a “youthful gun crime” as “an offense that has as an element the use of a gun and is committed by someone under the age of 21.” Tr. of Oral Arg. 16. This statute, the government suggests, would leave us little choice but to understand the single word “offense” as encompassing both the generic crime and the manner of its

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commission on a specific occasion. To which we say: Fair enough. It's *possible* for surrounding text to make clear that "offense" carries a double meaning. But absent evidence to the contrary, we presume the term is being used consistently. And nothing in § 924(c)(3)(B) comes close to rebutting that presumption.

Just the opposite. The language of the residual clause itself reinforces the conclusion that the term "offense" carries the same "generic" meaning throughout the statute. Section 924(c)(3)(B), just like § 16(b), speaks of an offense that, "by its nature," involves a certain type of risk. And that would be an exceedingly strange way of referring to the circumstances of a specific offender's conduct. As both sides agree, the "nature" of a thing typically denotes its "normal and characteristic quality," *Dimaya*, 584 U. S., at 165 (quoting Webster's Third New International Dictionary 1507 (2002)), or its "basic or inherent features," *United States v. Barrett*, 903 F. 3d 166, 182 (CA2 2018) (quoting Oxford Dictionary of English 1183 (A. Stevenson ed., 3d ed. 2010)). So in plain English, when we speak of the nature of an offense, we're talking about "what an offense normally—or, as we have repeatedly said, 'ordinarily'—entails, not what happened to occur on one occasion." *Dimaya*, 584 U. S., at 165; see *Leocal*, 543 U. S., at 7 (contrasting the "nature of the offense" with "the particular facts [of] petitioner's crime").⁵

Once again, the government asks us to overlook this obvious reading of the text in favor of a strained one. It sug-

⁵The government's own regulations reflect this understanding of the ordinary meaning of "by its nature." A Department of Justice regulation provides that an inmate is not eligible for early release if he was convicted of an offense "that, by its nature *or conduct*, presents a serious potential risk of physical force." 28 CFR § 550.55(b)(5)(iii) (2017) (emphasis added); see *Bush v. Pitzer*, 133 F. 3d 455, 458 (CA7 1997) (denying early release because "[c]onspiracy does not by its 'nature' present a serious risk; but Bush's 'conduct' did so").

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gests that the statute might be referring to the “nature” of the defendant’s conduct on a particular occasion. But while this reading may be linguistically feasible, we struggle to see why, if it had intended this meaning, Congress would have used the phrase “by its nature” at all. The government suggests that “by its nature” keeps the focus on the offender’s *conduct* and excludes evidence about his *personality*, such as whether he has violent tendencies. But even without the words “by its nature,” nothing in the statute remotely suggests that courts are allowed to consider character evidence—a type of evidence usually off limits during the guilt phase of a criminal trial. Cf. Fed. Rule Evid. 404.

B

Things become clearer yet when we consider § 924(c)(3)(B)’s role in the broader context of the federal criminal code. As we’ve explained, the language of § 924(c)(3)(B) is almost identical to the language of § 16(b), which this Court has read to mandate a categorical approach. And we normally presume that the same language in related statutes carries a consistent meaning. See, *e. g.*, *Sullivan v. Stroop*, 496 U. S. 478, 484 (1990).

This case perfectly illustrates why we do that. There are dozens of federal statutes that use the phrase “crime of violence” to refer to presently charged conduct rather than a past conviction. Some of those statutes cross-reference the definition of “crime of violence” in § 924(c)(3), while others are governed by the virtually identical definition in § 16. The choice appears completely random. Reading the similar language in § 924(c)(3)(B) and § 16(b) similarly yields sensibly congruent applications across all these other statutes. But if we accepted the government’s invitation to reinterpret § 924(c)(3)(B) as alone endorsing a case-specific approach, we would produce a series of seemingly inexplicable results.

Take just a few examples. If the government were right, Congress would have mandated the case-specific approach in a prosecution for providing explosives to facilitate a crime of